



File No.: EXP202405568

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against KVIKU SPAIN, S.L. with NIF B09804295 (hereinafter, the complained party), indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection were noted, leading to the initiation of actions under file number EXP202310007.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint was forwarded to the responsible party or to the Data Protection Officer designated, if applicable, requesting that they send the information and documentation indicated to this Agency.

The transfer, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, as evidenced by the acknowledgment of receipt in the file, understanding that the procedure was carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on August 1, 2023. Although the notification was validly carried out by electronic means, for informational purposes, a copy was sent by postal mail, resulting in the transfer being delivered on August 16, 2023, as evidenced by the acknowledgment of receipt in the file.

On September 5, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complaining party was admitted for processing.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, a request for information was sent to the complained party on two occasions, relating to the complaint indicated in the first section, requesting that, within ten working days, they present to this Agency the information and documentation specified.

THIRD: The aforementioned request for information was notified on both occasions in accordance with the rules established in the LPACAP.

After an electronic notification that was not collected by the responsible party within the availability period, the request was delivered to the complained party by postal means on December 5, 2023, as evidenced by the acknowledgments of receipt in the file.

FOURTH: After the granted period elapsed without this Agency having received any response from the complained party, the request was reiterated on two more occasions.

The request, which was initially returned to sender by the postal service as unknown on February 16, 2024, despite having been sent to the address listed in the Commercial Registry as the domicile of the complained party, was delivered to the complained party by postal means at the address listed on their website on March 21, 2024, as evidenced by the acknowledgment of receipt in the file.

FIFTH: Regarding the requested information, the complained party has not sent any response to this Spanish Agency for Data Protection.

SIXTH: On May 8, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

The initiation agreement was received by the complained party on May 23, 2024, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed,

it was confirmed that no allegations had been received from the complained party.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made any allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

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EIGHTH: According to the report gathered from the AXESOR tool, the entity KVIKU SPAIN, S.L. is an SME (Microenterprise), established in the year 2022 with a share capital of 3,000 euros, for which no information is available regarding its income statement.

In view of all actions taken by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The information requests indicated in the second, third, and fourth recitals were notified in accordance with the provisions of the LPACAP.

SECOND: The respondent has not responded to the information requests made by this Agency within the deadlines granted for that purpose in the context of the investigation proceedings of file EXP202310007.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation not fulfilled

In accordance with the facts presented, it is considered that the respondent has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of the respondent, the investigative power conferred to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the respondent, for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have the power to:

"a) order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information necessary for the performance of its tasks."

III

Classification and qualification of the infringement

The facts presented are deemed to constitute an infringement, attributable to the respondent.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "failure to provide access in violation of Article 58, paragraph 1."

The same article establishes that this infringement may be sanctioned with a fine of up to twenty

million euros (€20,000,000) or, in the case of an enterprise, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount. For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and processing means required by the competent data protection authority for the exercise of its investigative powers.”

IV

Imposed sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR. Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into account.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.1 of the GDPR classified under Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of €600.00.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO IMPOSE on KVIKU SPAIN, S.L., with NIF B09804295, a fine of 600.00 euros (SIX HUNDRED euros) for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER KVIKU SPAIN, S.L., with NIF B09804295, to provide, in accordance with the investigative power established in Article 58.1.a) of the GDPR, the information requested in the requirements made within the framework of the proceedings numbered EXP202310007, to which reference has been made in the background of this resolution, within ten working days from the date this resolution becomes final and enforceable.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Article 83.6, which may lead to the initiation of further administrative sanctioning procedures.

THIRD: TO NOTIFY this resolution to KVIKU SPAIN, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the

following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not receive knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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